

HEADNOTE

“In the appeal against an order allowing a request for extension of the main action with another patent, a request by the Applicants applied for on the last day of the time periods under R. 224.1(b) and R.224.2(b) RoP for shortening of a time period pursuant to R.9.3 (b) RoP for lodging the Statement of response is dismissed in view of the interests of the Respondent and principles of due process, even though this could mean that in the proceedings before the Court of First Instance the Statement of defense has to be lodged before a decision in the appeal proceedings has been rendered.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 3611989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Expedition of the appeal

R.225 (e)

R.9.3 (b) RoP

Rule 224 Time periods for lodging the Statement of appeal and the Statement of grounds of appeal

SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, when an applicant requests a time extension on the final day allowed under the Rules of Procedure, a subsequent request to shorten the response deadline may be dismissed if granting it would prejudice the other party or violate procedural fairness. The court's decision to protect the respondent's interests can stand even when this means the lower court must proceed with defense filings before the appeal is resolved.